



File No.: EXP202410118

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 9, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On June 9, 2024, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) against TELEFÓNICA MÓVILES ESPAÑA, S.A. (hereinafter, the respondent) for not having duly attended to their right of access to their personal data.

The complainant states that on April 30, 2024, they requested access to their personal data from the respondent, including copies of call recordings, copies of invoices, and complaints submitted, as well as responses received to these.

They report that on June 6, 2024, they received a response informing them that they could obtain the invoices through the respondent's application, that the resolutions of the complaints had already been communicated to them by email, and that they could not provide the call recordings "in compliance with the Data Protection Law and for obvious security reasons."

The complainant expresses their disagreement with this denial, alleging, among other things, that the respondent's application does not allow access to older invoices.

Along with the complaint, the following documents have been submitted:

- Email dated 04/30/2024 in which the complainant states "(...) I formally request a complete copy of all the data that Telefónica has about me, including but not limited to:

- . All generated invoices

- . All complaints and associated responses

- . Records of all recorded calls and related data such as dates, duration, and participants"

- Email from info@email.movistar.es dated 06/06/2024, in which they indicate "We inform you that you can access from movistar.es or from your mobile with the My Movistar app (...) where you can consult and download your invoices.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Regarding the resolutions of the complaints, they have been sent to your email in the resolution of the same.

As for the sending of the call recordings, we inform you that, in compliance with the Data Protection Law, and for obvious reasons of security and confidentiality, we cannot comply with your request."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on 07/30/2024, as recorded in the acknowledgment of receipt in the file.

This Agency has no record of having received a response to this forwarding letter.

THIRD: The result of the forwarding procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on September 9, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working

days, they could present any arguments they deemed appropriate.

The respondent has indicated that they did not respond to the initial request from the AEPD within the established timeframe due to a specific error.

“(…) Notwithstanding the above, once we became aware of this Admission Letter, we inform the AEPD that an email has been sent to the Complainant in which their right of access has been fulfilled in accordance with their request, sending them the data we have about them, complaints and responses, as well as a copy of the recordings that are in our systems and the invoices for the services they have contracted, all related to the services subject to the complaint.

That is to say, through this response, the right of access has been effectively granted to the Complainant in accordance with their claims, resolving this complaint in their favor.

Annexes 1 and 2 to this letter include a copy of the email sent and the response to the complainant, respectively. In Annex 1, it can be verified that the requested information was attached.

(…) Finally, regarding the unaddressed right, we would like to inform you that, after carrying out the appropriate verifications, the complainant's request for access was sent to the email addresses escritos.gp@telefonica.com and info@email.movistar.es

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

In this regard, and in accordance with our privacy policy at Movistar, these addresses are not among those indicated in the Movistar Privacy Policy, available at all times at www.movistar.es/privacidad, for exercising personal data rights, with the correct ones being the following:

- Sending a postal letter, indicating in the request which right is being exercised and to which specific phone numbers held by the customer the aforementioned request pertains, to Telefónica de España S.A.U. or Telefónica Móviles España S.A.U.: Ref. Data, P.O. Box 46.155, 28080 Madrid, or
- Writing an email through the following address, providing the same information outlined in the previous section, to: TE_datos@telefonica.com
- Calling from each of their fixed or mobile lines, regarding which they intend to exercise their right, to the toll-free number 224407.
- Through other means that may be made available to the customer or user as per availability, such as the My Movistar App or through the private area of www.movistar.es.

Therefore, when you requested a copy of recordings and invoices, this department, which is exclusively focused on handling complaints related to Movistar products and services, did not provide you with the correct information.

Notwithstanding the above, the commercial team has been reminded that, in the event of any request for the exercise of rights regarding data protection by our customers, they must direct the customer to the channels enabled for such purposes, specified in the Movistar Privacy Policy, also reminding them that the current regulations regarding data protection obligate the company to provide customers with recordings or invoices as part of their right of access to personal data.”

Upon reviewing the document submitted by the responding party to this Agency, a copy of the email that was sent to the complainant with the requested information has been provided. Specifically, it includes a screenshot of the email that was sent to the complainant from the address

TE_DPO_Movistar to the address ***EMAIL.1. This email was sent on 11/19/2024 and includes two attached pdf files (complaints and customer response) and two zip files named Invoices A.A.A. and Recordings). No copy of the content of the documents sent is provided.

FOURTH: Upon examining the document submitted by the responding party, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they deem appropriate, with no record of any response having been submitted.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on September 9, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to attend to a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/9

Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the claimant. Once this period has elapsed, the interested party may consider their claim accepted.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the

GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/9

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood to be granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which involves a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

It is worth beginning by recalling that, according to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to

the personal data."

In this case, it has been established that the claimant sent an email to the respondent requesting "(...) a complete copy of all the data that Telefónica has about me, including but not limited to:

- All generated invoices
- All complaints and associated responses
- Records of all recorded calls and related data such as dates, duration, and participants"

Furthermore, there is an email from the respondent denying such access because the claimant can download all invoices, resolutions to their various complaints have already been sent, and "(...)

Regarding the sending of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

the recordings of the calls, we inform you that, in compliance with the Data Protection Law, and for obvious reasons of security and confidentiality, we cannot attend to your request."

During the processing of this procedure, the responding party has replied to this Agency, indicating that the request was not duly attended to due to a specific error, because the exercise of the right had been sent to an address that is not established for that purpose.

Before addressing the substance of the matter, it should be noted that, according to the data protection regulations, voice is also considered personal data. Therefore, the complaining party would have the right to be provided with the voice recordings under the data protection regulations.

According to the European Data Protection Board, it must be weighed whether the information concerning the access requester and also third parties should be provided. The data controller must be able to demonstrate that the rights or freedoms of third parties would be harmed in the specific situation. The application of Article 15, paragraph 4, should not lead to the total denial of the request of the interested party; it should only result in excluding or rendering illegible those parts that may have negative effects on the rights and freedoms of others.

Thus, the guidelines of the aforementioned Committee indicate that "...the right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must be balanced with other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed considering the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data..."

Consequently, the right of access to the recording of your voice requested by the complaining party is indeed protected by the current data protection regulations.

On the other hand, the responding party states that they improperly denied the right because the exercise had not been submitted through the established channel.

This Spanish Agency for Data Protection has verified that at the web address indicated by the complaining party, <https://www.movistar.es/particulares/centro-de-privacidad/#Ejercicio>, it states that "Movistar guarantees the adoption of the necessary measures to ensure the exercise of these rights free of charge, being necessary for such exercise to attach a copy of your official identification document:

a. For the exercise of any of the aforementioned rights by sending a postal letter, indicating in the request which right is being exercised and to which specific phone numbers of which the customer is the holder the aforementioned request affects, to:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/9

- Telefónica de España S.A.U. or Telefónica Móviles España S.A.U.: Ref. Data P.O. Box 46.155 28080

Madrid, or (...)

b. By writing an email through the following address, providing the same information stated in the previous section, to: TE_datos@telefonica.com

c. By calling from each of your fixed or mobile lines, regarding which you intend to exercise your right to the free phone number 223548.

d. Through other means that may be made available to the customer or user as per availability, such as the Mi Movistar App or through the private area of www.movistar.es.

Although it is appropriate for such a request to be directed to the address declared by the responsible party for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, or to the central office, it is considered that the receipt of the request by any department or branch of the responsible party is a valid destination for it, in accordance with Article 12 of LODPGDD, which states: "The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has opted for another means."

Moreover, even in the case that it is not submitted through the provided channel or at the corresponding office, the receiving body must forward the received request to the department responsible for managing such requests.

Additionally, it indicates that, having become aware of the request through this procedure, it has sent the claimant an email addressing said request. In this regard, it provides a screenshot of the email that was sent to the claimant from the address TE_DPO_Movistar to the address ***EMAIL.1. This email was sent on 19/11/2024 and includes two attached pdf files (claims and customer response) and two zip files named Invoices A.A.A. and Recordings).

However, a copy of the documentation that was sent as an attachment to the email was not forwarded to the Agency. Nevertheless, in light of the response from the respondent, a hearing procedure was opened for the claimant in which they could make allegations regarding the information received, without any record of them having done so.

For all these reasons, it must be concluded that the claimant's right has been addressed, although within the framework of the processing of this procedure, which must therefore be estimated for formal reasons.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the complaint filed by A.A.A., against TELEFÓNICA MÓVILES ESPAÑA, S.A. However, it is not appropriate to issue a new certification by the responding party, as the response was issued late, without requiring additional actions by the responsible party.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

SECOND: TO NOTIFY this resolution to A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es